

26CV04894 California Department of Motor Vehicles vs Santa Barbara Sheriff's Department

County: santa-barbara

Division: Civil Law & Motion

Department: 3 SB-Anacapa

Hearing date: 2026-09-16

Motion: OSC re DMV's certification of facts to justify contempt sanctions

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Tentative Ruling: California Department of Motor Vehicles vs Santa Barbara Sheriff's Department

Case Number

26CV04894

Case Type

Civil Law & Motion

Hearing Date / Time

Wed, 09/16/2026 - 10:00

Nature of Proceedings

OSC re DMV's certification of facts to justify contempt sanctions

Tentative Ruling

Plaintiff by Lorinda VeFranco

Defendant by Paul Lee

RULINGS

Continued sua sponte to 11/18/26 at 10 am. Status Reports invited before the next hearing.

Analysis

On 7/30/26 the case was filed; 36 pages; summarized; claims The California Department of Motor Vehicles, an agency for the State of California, by and through its Director Steve Gordon ("DMV"), hereby submits the attached Certification of Facts regarding the administrative subpoena to the Santa Barbara Sheriff's Department that justifies contempt sanctions. This matter concerns the failure by the Santa Barbara County Sheriff's Department to comply with administrative subpoenas issued pursuant to Vehicle Code section 14104.5. The subpoenas demanded that the Custodian of Records produce records, which concern the August 10, 2025, arrest of Cayden Corral, at the DMV's Administrative Per Se hearing on October 22, 2025. The subpoena sought records created by the Santa Barbara County Sheriff's Department and requested all documents, including MVARs, Audio/Video files, and Body Cam videos, of events surrounding the arrest of Cayden Corral as documented in the Arrest Report 25-81198 and referred to in the first category in the subpoena. The Santa Barbara County Sheriff's Department did not produce the records on October 22, 2025. In addition, on July 17, 21 and 22, 2026, the DMV attempted to resolve this matter by narrowing the documents it subpoenaed and making a request to the Santa Barbara Sheriff's Department but was informed that the Santa Barbara Sheriff's Department had no obligation to respond. The DMV only seeks the production of the following: All photographs, audio and video recordings, including, but not limited to, dash camera video(s), body camera video(s), personal audio recordings of entire investigation taken by Deputy Florez (Badge/ID No. 6025), Deputy Hernandez (Badge/ID No. 5463), Senior Deputy T. Fournier (Badge/ID No. 4947), any other officer(s)/deputy(ies), department employee(s), private citizen(s), or any individual(s), business(es) for or related to Arrest Report No.: 25-81198. DMV respectfully requests that the Court proceed with the Order to Show Cause against the Custodian of Records for Santa Barbara County Sheriff's

Department and Bureau of Forensic Services so that the Administrative Per Se hearing can be completed as required by law.

OSC Set

On 7/31/26 DMV set an OSC for 8/27/26.

Objections Filed

On 8/21/26 the Attorneys for the Santa Barbara County Sheriff's Department filed objections; 5 pages; summarized: The Sheriff's Office does not object to the production of records provided that the DMV obtains a court order for juvenile records as required under Welfare and Institutions Code 827 and Rule of Court 5.552. Absent this court order, the Sheriff's Office cannot release the records as a matter of law. This matter arises from an underlying administrative hearing between the DMV and a juvenile who was detained for driving under the influence. Following the detention, a police report was prepared, and a chemical test was issued and documented. In addition, the Sheriff's Office retained video footage of the detention. Thereafter, the matter was forwarded to the Probation Department for further handling. Following the detention, the DMV initiated an administrative hearing. Under that administrative action, counsel for the juvenile issued subpoenas for certain records held by the Sheriff's Office. The Sheriff's Office declined to provide the records to minor's counsel because a court order was necessary to release juvenile files. The DMV did not issue a subpoena; however, it claims that the Sheriff's Office is to release the requested records to the OMV-including photos and video footage of the incident-without a court order from the juvenile court.

Argues that (1) Since the subpoena was issued by the juvenile, the DMV does not have standing to enforce the subpoena. (2) The records sought here are records of a juvenile and can only be released pursuant to Welfare and Institutions Code section 827 and Rule of Court 5.552.

Continued by Stipulation

On 8/28/26 the matter was continued by stipulation of the parties to 9/16/26.

The Court's Conclusions

Nothing further has been filed, and the Court cannot determine from this record whether the parties intend the matter to go forward and so must continue it sua sponte. CMCSs or Status Reports invited before the next hearing.

Judges

Judge Thomas Anderle

Dept. 3 SB-Anacapa

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